

TUG COMANCHE HISTORICAL RESCUE FOUNDATION

Washington UBI 605-985-270 | EIN 39-5018917

Auburn, Washington, United States

BYLAWS

Effective upon adoption by the Board of Directors

BOARD RESOLUTION ADOPTING AMENDED AND RESTATED BYLAWS

At a duly called meeting of the Board of Directors of Tug Comanche Historical Rescue Foundation, a Washington nonprofit corporation, the Board adopted the following resolutions:

RESOLVED, that the Board has considered the Amended and Restated Bylaws attached to these minutes and finds that the bylaws are consistent with the corporation's charitable, educational, historical preservation, and nonprofit purposes;

RESOLVED FURTHER, that the Board confirms that the corporation is a Washington nonprofit corporation without statutory members; that no donor, volunteer, sponsor, contributor, advisor, crew member, committee participant, officer, director, founder, incorporator, or other person has or may claim statutory membership rights, voting rights, governance rights, inspection rights, ownership rights, asset rights, reimbursement rights, or approval rights except as expressly provided by the Articles of Incorporation, these Bylaws, applicable law, or a valid Board action;

RESOLVED FURTHER, that the Board confirms that the corporation recognizes no founder's rights, legacy rights, special contributor rights, donor control rights, or equivalent personal rights; that no founder, incorporator, initial director, donor, substantial contributor, lender, volunteer, employee, officer, crew member, advisor, sponsor, contractor, or other person has personal, permanent, inherited, reserved, implied, honorary, or special authority over the corporation by reason of formation, contribution, labor, title, relationship, or historical involvement;

RESOLVED FURTHER, that the Board confirms that donations and contributions to the corporation are irrevocable charitable gifts and shall not be refunded, reimbursed, credited, repaid, set off, or recharacterized as loans, advances, reimbursable expenses, or personal claims, except where return is required by law or by a final order of a court or governmental authority;

RESOLVED FURTHER, that any accountable reimbursement requested by a director, officer, substantial contributor, founder, incorporator, or other insider must be approved in advance by the Board or under a written Board-approved financial policy, must be tracked in the minutes until closed, must be supported by records, and must be finally tallied and closed by the Board; and that the person seeking reimbursement shall not vote on or control any matter concerning that reimbursement;

RESOLVED FURTHER, that the Board approves and adopts the Amended and Restated Bylaws effective as of the date of this meeting, and the Amended and Restated Bylaws supersede all prior bylaws of the corporation;

RESOLVED FURTHER, that the Secretary is directed to maintain the adopted bylaws with the permanent corporate records and to distribute a copy to all current directors and officers.

Secretary: _____

WESLEY A. WEAVER JR.

Date: 10/24/2025

AMENDED AND RESTATED BYLAWS

OF
TUG COMANCHE HISTORICAL RESCUE FOUNDATION
Washington UBI 605-985-270 | EIN 39-5018917

ARTICLE I - NAME, OFFICES, AND GOVERNING LAW

Section 1.1 Name

The name of the corporation is Tug Comanche Historical Rescue Foundation. The corporation is identified in Washington records by UBI 605-985-270 and in federal tax records by EIN 39-5018917. These identifiers are administrative and tax identifiers only and do not create membership rights, founder rights, ownership interests, reimbursement rights, donor rights, or any other personal rights in the corporation. The corporation may use trade names, assumed business names, vessel names, project names, or public-facing program names as authorized by the Board and permitted by law.

Section 1.2 Offices

The principal place of business of the corporation is in Auburn, Washington, United States, or at such other place as the Board of Directors may designate. The corporation shall continuously maintain a registered agent and registered office as required by Washington law.

Section 1.3 Governing Law

The corporation is organized and shall be operated as a Washington nonprofit corporation under Chapter 24.03A RCW and as a corporation intended to qualify as an organization described in Section 501(c)(3) of the Internal Revenue Code.

ARTICLE II - PURPOSES AND LIMITATIONS

Section 2.1 Charitable and Educational Purposes

The corporation is organized and shall be operated exclusively for charitable, educational, historical preservation, scientific, and other purposes within the meaning of Section 501(c)(3) of the Internal Revenue Code. These purposes include, without limitation, preserving, restoring, interpreting, and educating the public concerning the historic vessel ATA 202, Tug Comanche, and related maritime heritage assets and related maritime history, technology, public service, and heritage.

Section 2.2 501(c)(3) Operating Limitations

No part of the net earnings of the corporation shall inure to the benefit of, or be distributable to, any director, officer, private shareholder, private individual, or other person having a private interest in the corporation, except that the corporation may pay reasonable compensation for services rendered and may reimburse reasonable expenses incurred in carrying out corporate purposes.

No substantial part of the activities of the corporation shall consist of attempting to influence legislation, except to the extent permitted for organizations described in Section 501(c)(3) of the Internal Revenue Code. The corporation shall not directly or indirectly participate or intervene in any political campaign on behalf of or in opposition to any candidate for elective public office.

The corporation shall not carry on any activity not permitted to be carried on by an organization exempt from federal income tax under Section 501(c)(3) of the Internal Revenue Code, or by an organization contributions to which are deductible under Section 170(c)(2) of the Internal Revenue Code.

Section 2.3 Property Held for Charitable Purposes

All property held for charitable purposes, including restricted gifts, grants, artifacts, collections, vessel assets, and restoration funds, shall be administered consistently with donor restrictions, board-adopted restrictions, applicable law, and the corporation's charitable purposes.

ARTICLE III - NO STATUTORY MEMBERS

Section 3.1 No Statutory Members

The corporation shall have no statutory members. No person or entity shall be a member of the corporation for purposes of Chapter 24.03A RCW unless the Articles of Incorporation and these Bylaws are formally amended to create statutory members and define their rights.

Section 3.2 No Membership Rights Created by Donations or Contributions

No person or entity has, earns, purchases, receives, or may claim a right to membership, member status, voting rights, governance rights, inspection rights, approval rights, ownership rights, equity rights, or any other statutory member rights by reason of any donation, contribution, grant, sponsorship, dues-like payment, volunteer service, labor, vessel work, operational support, committee participation, advisory role, artifact donation, in-kind contribution, professional service, event participation, public support, or other relationship with the corporation, regardless of the amount, frequency, importance, or duration of that support.

The corporation shall not recognize or entertain any claim that a person or entity has become, is entitled to become, or should be treated as a statutory member because of money, labor, services, materials, artifacts, access, contacts, publicity, expertise, or any other contribution provided to or for the benefit of the corporation.

Section 3.3 Non-Member Designations

The Board may create donor categories, supporter programs, volunteer rosters, crew designations, sponsorship levels, advisory committees, working groups, project teams, or honorary titles for administrative, fundraising, recognition, operational, or public-relations purposes. Any such designation is non-member status only. Terms such as donor, supporter, friend, volunteer, crew, sponsor, advisor, committee member, project lead, department member, or similar language shall not create statutory membership, voting rights, governance rights, or any right to compel corporate action.

Section 3.4 No Transferable Interest

No person or entity shall have any transferable, inheritable, assignable, or property interest in the corporation by reason of any relationship with the corporation. All corporate assets are held for the corporation's nonprofit and charitable purposes and not for members, donors, volunteers, contributors, or private persons.

Section 3.5 No Founder's Rights or Special Personal Rights

No founder, incorporator, initial director, donor, substantial contributor, lender, volunteer, employee, officer, crew member, advisor, sponsor, contractor, or other person has any personal, permanent, inherent, implied, reserved, superior, or special right to manage, control, direct, veto, approve, inspect, possess, transfer, reclaim, or receive assets of the corporation by reason of founding, organizing, funding, donating to, working for, serving, advising, sponsoring, or contributing to the corporation. The corporation recognizes no founder's rights, legacy rights, special contributor rights, donor control rights, asset rights, reimbursement rights, or equivalent personal governance rights except to the extent expressly created by the Articles of Incorporation, these Bylaws, a lawful Board-approved written agreement, or applicable law.

Because these Bylaws reserve no such personal powers, any claim of personal authority, founder authority, personal ownership, permanent control, asset entitlement, donation reimbursement, or special governance status contrary to the Articles of Incorporation, these Bylaws, lawful Board action, or applicable law is unauthorized, void as against the corporation, and a violation of these Bylaws. The Board shall reject any such claim and shall not treat historical involvement, donation amount, contribution amount, operational labor, volunteer work, public advocacy, vessel work, or access to donors or contacts as creating any corporate right.

ARTICLE IV - BOARD OF DIRECTORS

Section 4.1 Authority

All corporate powers shall be exercised by or under the authority of the Board of Directors, and the activities and affairs of the corporation shall be managed by or under the direction and oversight of the Board, subject to the Articles of Incorporation, these Bylaws, and applicable law.

Section 4.2 Number

The Board shall consist of not fewer than four and not more than seven directors, with the specific number set by resolution of the Board. No decrease in the number of directors shall shorten the term of any incumbent director. If the corporation is or has applied to be a public charity described in Section 509(a)(1) through (4) of the Internal Revenue Code, the Board shall at all times make reasonable and prompt efforts to maintain at least three directors.

Section 4.3 Qualifications

Each director must be an individual. Directors need not be residents of Washington unless the Articles of Incorporation are amended to require residency. The Board may adopt additional director qualification policies that are not inconsistent with law, the Articles, or these Bylaws. The number of directors under 18 years of age shall not exceed the limit permitted under Chapter 24.03A RCW.

Section 4.4 Election and Term

Successor directors shall be elected at the annual meeting by the affirmative vote of a majority of the directors then in office unless a greater vote is required by these Bylaws or applicable law. Unless a director dies, resigns, or is removed, each director shall hold office until the next annual meeting or until a successor is elected and takes office, whichever is later. A director elected to fill a vacancy shall serve for the unexpired term of the predecessor unless the Board provides otherwise consistent with law.

Section 4.5 Resignation

A director may resign at any time by delivering notice in the form of a record to the President, Secretary, or another officer designated by the Board, or by giving oral notice at a meeting of the Board. A resignation is effective when the notice is delivered unless the notice specifies a later effective time.

Section 4.6 Removal

One or more directors, including the entire Board, may be removed, with or without cause, by the affirmative vote of a majority of the number of directors fixed by or in the manner provided in these Bylaws, unless a greater vote is required by the Articles of Incorporation, these Bylaws, or applicable law.

Section 4.7 Vacancies

A vacancy on the Board may be filled by the affirmative vote of a majority of the remaining directors, even if less than a quorum. The Board shall make reasonable and prompt efforts to fill vacancies necessary to maintain legal compliance, continuity of operations, and proper stewardship of the corporation's charitable assets.

Section 4.8 Compensation and Reimbursement

Directors shall not receive compensation for serving as directors unless approved by the Board after conflict-of-interest analysis and after determining that the compensation is reasonable and in the corporation's best interests. Directors may be reimbursed for reasonable expenses incurred in service to the corporation. No director may vote on that director's own compensation, reimbursement dispute, or other transaction in which the director has a conflict of interest.

ARTICLE V - BOARD MEETINGS AND ACTION

Section 5.1 Annual Meeting

The annual meeting of the Board shall be held during September or at another time selected by the Board for the purpose of electing directors and officers, examining corporate records, and transacting such other business as may properly come before the meeting.

Section 5.2 Regular Meetings

The Board may establish regular meetings by resolution. Regular meetings may be held without further notice if the date, time, and place or remote-communication method are set by resolution.

Section 5.3 Special Meetings

Special meetings of the Board may be called by the President, the Secretary, or any two directors. The person or persons calling the meeting may designate the place or remote-communication method for the meeting.

Section 5.4 Notice

Notice of a special meeting shall be delivered to each director at least two days before the meeting by personal delivery, mail, private courier, electronic transmission, or other method permitted by law. The notice need not state the purpose of the meeting unless required by law, the Articles, or these Bylaws.

Section 5.5 Waiver of Notice

A director may waive notice before or after a meeting in the form of a record. Attendance at a meeting waives notice except when the director attends for the express purpose of objecting to the transaction of business because the meeting was not lawfully called or convened.

Section 5.6 Remote Meetings

Directors and committee members may participate in meetings by conference telephone, videoconference, or other remote communication through which all participating persons may simultaneously hear or otherwise participate with each other to the extent permitted by law. Participation by remote communication constitutes presence in person at the meeting.

Section 5.7 Quorum and Voting

A majority of the directors in office before a meeting begins shall constitute a quorum. If a quorum is present when a vote is taken, the affirmative vote of a majority of directors present is the act of the Board unless a greater vote is required by law, the Articles, or these Bylaws. No proxy for a director may vote, be counted for quorum, or execute written consent on behalf of a director.

Section 5.8 Presumption of Assent

A director present at a meeting when corporate action is taken is considered to have assented to the action unless the director objects to the meeting, dissents or abstains from the action, or delivers notice of dissent or abstention in the form of a record to the President, Secretary, or other designated officer before or during the meeting or before approval of the minutes.

Section 5.9 Action Without Meeting

Any action that may be taken at a Board meeting may be taken without a meeting if each director entitled to vote on the subject executes a consent in the form of a record describing the action and delivers it to the corporation. The period between the first and last director signature shall not exceed sixty days. A director may withdraw consent by delivering revocation in the form of a record before all required consents have been delivered. Interested directors may abstain in writing from providing consent if the requirements of applicable law are satisfied and the noninterested directors approve the action as required by law.

ARTICLE VI - OFFICERS

Section 6.1 Officers

The officers of the corporation shall be a President, Vice President, Secretary, and Treasurer. The Board may authorize additional officers and assistant officers. The same individual may hold more than one office, except that the same individual may not hold the offices of President and Secretary.

Section 6.2 Election and Term

Officers shall be elected annually by the Board and shall serve until their successors have been elected or appointed and taken office, or until their earlier resignation or removal.

Section 6.3 President

The President shall be the chief executive officer or board chair of the corporation, as determined by the Board, and shall preside at Board meetings unless the Board designates another presiding officer. Subject to Board direction, the President shall supervise the affairs of the corporation and perform duties assigned by the Board.

Section 6.4 Vice President

The Vice President shall perform the duties of the President when the President is absent, unable to act, or when delegated by the President or the Board.

Section 6.5 Secretary

The Secretary shall keep or cause to be kept minutes of Board and committee meetings, maintain corporate records, give required notices, maintain records of directors and officers, and perform other duties assigned by the Board.

Section 6.6 Treasurer

The Treasurer shall have oversight of the funds, securities, financial records, budgets, and financial reports of the corporation; shall ensure that money is deposited in the name of the corporation in depositories selected by the Board; and shall perform other duties assigned by the Board. The Board may require the Treasurer or other financial officers to give bond.

Section 6.7 Resignation and Removal

An officer may resign at any time by delivering notice in the form of a record to the President, Secretary, or Board. The Board may remove any officer whenever, in its judgment, the best interests of the corporation would be served by removal, without prejudice to any contract rights of the officer.

ARTICLE VII - STANDARDS OF CONDUCT, CONFLICTS, AND EXCESS BENEFIT TRANSACTIONS

Section 7.1 Standards of Conduct

Each director and officer shall act in good faith, with the care an ordinarily prudent person in a like position would exercise under similar circumstances, and in a manner the director or officer reasonably believes to be in the best interests of the corporation. Directors and officers may rely on information, opinions, reports, and statements prepared or presented by reliable officers, employees, volunteers, legal counsel, public accountants, or other qualified persons, to the extent permitted by law.

Section 7.2 Conflicts of Interest

Each director, officer, and member of any committee with Board-delegated authority shall disclose any actual or potential conflict of interest, including any direct or indirect financial interest in a transaction or arrangement involving the corporation. The interested person shall not vote on the transaction and may be excluded from deliberations when the Board or committee determines exclusion is appropriate.

Section 7.3 Approval of Conflicting Interest Transactions

The Board may approve a transaction involving a conflict of interest only after the material facts are disclosed or known and the transaction is approved in good faith by disinterested directors, or otherwise satisfies applicable law. Minutes shall document the disclosure, persons present, persons recused or abstaining, comparability information considered, and the basis for determining that the transaction is fair, reasonable, and in the corporation's best interests.

Section 7.4 Compensation and Excess Benefit Safeguards

Before approving compensation, insider contracts, use of corporate property, or other arrangements involving a director, officer, key employee, substantial contributor, family member, controlled entity, or other person with substantial influence, the Board shall use an authorized body composed of persons without a conflict, obtain and rely upon appropriate comparability data, and adequately document the basis for its decision.

Section 7.5 Annual Disclosure

The Board may require annual written conflict-of-interest disclosures from directors, officers, and key personnel, and may adopt a separate conflict-of-interest policy supplementing these Bylaws.

ARTICLE VIII - COMMITTEES AND ADVISORY GROUPS

Section 8.1 Board Committees

The Board may create one or more committees of the Board consisting of one or more directors. To the extent specified by the Board and permitted by law, a committee of the Board may exercise Board authority. The creation of a committee, appointment of directors to it, and delegation of authority to it shall be approved in the manner required by Chapter 24.03A RCW.

Section 8.2 Limits on Board Committees

No committee of the Board may authorize distributions; adopt, amend, alter, or repeal bylaws; elect, appoint, or remove directors, officers, or members of a committee of the Board; amend the Articles of Incorporation; adopt a plan of merger, domestication, for-profit conversion, or entity conversion; authorize the sale, lease, or exchange of all or substantially all assets outside the ordinary course; authorize voluntary dissolution or revoke dissolution proceedings; adopt a plan for distribution of assets; or amend a Board resolution unless the resolution permits amendment by committee.

Section 8.3 Advisory Committees

The Board may create advisory committees, working groups, departments, volunteer teams, or project groups whose members need not be directors. Advisory committees may advise the Board, perform work assigned by the Board, and make recommendations, but shall not exercise Board authority or bind the corporation unless separately authorized through lawful officer authority, contract authority, or Board action.

Section 8.4 Committee Procedure

Committee meetings and action shall follow the Board meeting and action rules to the greatest practicable extent unless otherwise provided by law, the Articles, these Bylaws, or Board resolution.

ARTICLE IX - FINANCES, RECORDS, AND CORPORATE DOCUMENTS

Section 9.1 Fiscal Year

Unless changed by Board resolution, the fiscal year of the corporation shall end on September 30.

Section 9.2 Deposits and Disbursements

All funds shall be deposited in the name of the corporation in banks, credit unions, trust companies, or other depositories selected by the Board. Checks, payment instruments, electronic payments, notes, contracts, and other obligations shall be signed or approved by the officer or officers, agent or agents, or other persons authorized by Board resolution or written financial policy.

Section 9.3 Donations and Contributions Are Irrevocable and Non-Refundable

All donations, grants, sponsorships, dues-like supporter payments, charitable contributions, artifact donations, vessel-related contributions, in-kind contributions, labor, services, materials, equipment, supplies, payments, and other support given to or for the benefit of the corporation are irrevocable charitable contributions to the corporation and are not refundable, reimbursable, repayable, returnable, creditable, transferable, or subject to setoff. No donation or contribution shall create a debt, loan, deposit, membership right, ownership right, reimbursement right, lien, security interest, purchase right, asset right, governance right, or right to reclaim money, property, labor value, materials, artifacts, services, or other support from the corporation.

No person may recharacterize a donation, contribution, sponsorship, artifact gift, in-kind support, vessel work, labor, materials, or services as a reimbursable expense, loan, advance, or account payable after the fact. The corporation shall not voluntarily refund or reimburse donations or contributions in any capacity, except where return is required by law or by a final order of a court or governmental authority. Restrictions accepted by the corporation on restricted gifts shall be handled as charitable restrictions and shall not create personal refund rights unless applicable law requires otherwise.

Section 9.4 Accountable Reimbursement Approval, Tracking, and Conflict Recusal

A director, officer, committee member, volunteer, employee, or other person seeking accountable reimbursement from the corporation must obtain Board approval before incurring the expense, unless a written Board-approved financial policy delegates advance approval authority for a defined category of expenses. The approval must identify the business purpose, maximum authorized amount, eligible expense category, reimbursement period, documentation required, deadline for submitting receipts and records, and whether any advance is authorized. No reimbursement shall be owed merely because a person claims that an expense helped the corporation.

Each open reimbursement authorization involving a director, officer, substantial contributor, founder, incorporator, or other insider must be tracked at every Board meeting until closed. The minutes shall state the amount authorized, amount advanced if any, amount submitted, amount approved, amount paid, amount rejected, amount still outstanding, documentation received, and the expected closing date. The reimbursement

period is not closed until the Board has examined the records, approved a final tally, identified any excess advance or unsupported amount, and recorded the final disposition in the minutes.

The person seeking reimbursement shall not vote on, approve, authorize, direct, or control any matter regarding that reimbursement, including preapproval, advances, documentation sufficiency, payment timing, final tally, dispute resolution, or waiver request. The interested person may provide factual information if requested by the Board, but must otherwise abstain. The Board, not the person seeking reimbursement, sets the timing, priority, amount, and conditions of any reimbursement payment. Any excess advance, unsupported amount, or amount not adequately accounted for must be returned to the corporation or treated as required by applicable tax law and Board policy.

Section 9.5 Loans

No loans shall be contracted on behalf of the corporation and no evidence of indebtedness shall be issued in its name unless authorized by Board resolution. No loans shall be made and no credit shall be extended by the corporation to its directors or officers.

Section 9.6 Books and Records

The corporation shall keep correct and adequate books and records of account, minutes of Board and committee proceedings, records of directors and officers, current Articles of Incorporation and Bylaws, financial reports, conflict disclosures, tax filings, charitable solicitation registrations, insurance records, and other records necessary or advisable for legal compliance and sound governance.

Section 9.7 Form 990 and Public Disclosure

If the corporation is required to file an IRS Form 990, 990-EZ, 990-N, or equivalent annual return or notice, the Board or a committee designated by the Board shall examine the filing before submission when practicable. The corporation shall make publicly available documents required to be disclosed under federal or state law.

Section 9.8 Document Retention

The Board may adopt a document retention and destruction policy addressing corporate, financial, personnel, donor, vessel, museum, insurance, legal, and electronic records. No person shall knowingly destroy, alter, or conceal records to obstruct an investigation, audit, litigation, or lawful request.

ARTICLE X - INDEMNIFICATION AND INSURANCE

To the fullest extent permitted by Washington law, the corporation may indemnify and advance expenses to directors, officers, employees, volunteers, and agents who are parties to proceedings by reason of their service to the corporation, subject to standards, limitations, and procedures established by law, the Articles, these Bylaws, or Board policy.

The corporation may purchase and maintain directors and officers liability insurance, general liability insurance, marine insurance, volunteer accident coverage, and other insurance the Board determines to be prudent or necessary.

ARTICLE XI - EMERGENCY AND OPERATIONAL AUTHORITY

In an emergency, including fire, flooding, casualty, storm, environmental risk, vessel hazard, loss of communications, public safety threat, or other condition requiring prompt action, the President, Vice President, Treasurer, Secretary, vessel master, operations lead, or other person designated by the Board may take reasonable temporary action necessary to protect life, property, charitable assets, vessel safety, legal compliance, or public safety, subject to later Board ratification when practicable.

ARTICLE XII - AMENDMENTS

These Bylaws may be amended, altered, repealed, or restated by the affirmative vote of a majority of the number of directors fixed by or in the manner provided in these Bylaws, or by written consent of all directors entitled to vote, unless a greater vote is required by the Articles, these Bylaws, or applicable law.

No amendment may modify or divert any restriction imposed on property held for charitable purposes except as permitted by law. No person affiliated with the corporation may receive a direct or indirect financial benefit in connection with a bylaw amendment except as permitted by law and the corporation's charitable purposes.

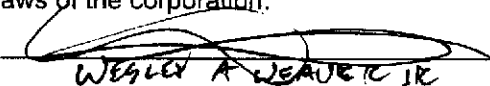
ARTICLE XIII - DISSOLUTION

Upon dissolution of the corporation, after paying or making adequate provision for all liabilities and obligations, all remaining assets held for charitable purposes shall be distributed for one or more exempt purposes within the meaning of Section 501(c)(3) of the Internal Revenue Code, or the corresponding section of any future federal tax code, or shall be distributed to the federal government, a tribal government, or a state or local government for a public purpose.

Restricted gifts, museum collections, vessel assets, archival materials, and other property subject to donor, grant, trust, board, or legal restrictions shall be transferred consistently with those restrictions and applicable law. No assets shall be distributed to any director, officer, private individual, or noncharitable entity except as permitted by law and consistent with charitable purposes.

ARTICLE XIV - ADOPTION

These Amended and Restated Bylaws were adopted by the Board of Directors on 10/24/2025, and supersede all prior bylaws of the corporation.

Secretary:  Date: 10/24/2025
WESLEY A. WEAVER JR.

Certified by the Secretary of the corporation:

Secretary:  Date: 10/24/2025
WESLEY A. WEAVER JR.